

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

September 17, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Alvarez v. Innovative Construction Solutions 2024-01399590	<u>Plaintiffs' Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs' motion for preliminary approval of a \$760,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u>

		1. Several paragraphs of the settlement agreement appear to be misnumbered. E.g., paragraph 72 is followed by paragraph 75.1, etc.; paragraph 73 is followed by paragraph 76.1, etc.; and so on. 2. The reference to "Section 66" in paragraph 40 appears to be an error. 3. The reference to "Section 67" in paragraph 41 appears to be an error. 4. The "Released Parties" provision in paragraph 42 is overbroad, as it includes unidentified, unrelated and/or ambiguous third parties such as "affiliates," "agents, attorneys, [and] insurers." 5. The third sentence of paragraph 77 should be removed, as the court will not approve a settlement that permits defendant to shorten the class period or the PAGA period. 6. While the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. Plaintiffs' counsel should address in the supplemental filing whether any such unique circumstances exist here. 7. Plaintiffs' counsel seeks costs not to exceed \$50,000. Plaintiffs' counsel has to date incurred costs totaling \$20,127.55. Kim Decl. Ex. 4. Why should the not-to-exceed costs amount be so much higher than plaintiffs' counsel's incurred costs? Do plaintiffs' counsel anticipate incurring substantial additional costs? In addition, postage charges are not recoverable and should not be included, and, while the court will determine actual costs incurred at final approval, the court will not award "future" costs that have not been incurred. 8. Plaintiffs each seek an enhancement award of \$10,000. While the court will not determine the amount of any enhancement award for plaintiffs until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 for each plaintiff absent unique circumstances. Plaintiffs should address in the supplemental filing whether any such unique circumstances exist here. <u>As to the notice:</u> 9. The notice should be revised consistent with the above. 10. There is a stray subsection (e) on page 4 of the notice. 11. The third sentence of subsection 3(g) of the notice should be revised as follows: "In the alternative, the Request for Exclusion may be a letter from a Class Member setting forth the Class Member's name, present address, telephone
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		number or email address, and a simple statement electing to be excluded from the Settlement.” 12. Should the notice be provided in any language other than English? If so, a certified copy of the translated notice should be attached to the proposed order as an exhibit. <u>As to the proposed order (ROA 122, 126):</u> 13. The proposed order should be revised consistent with the above. 14. The settlement agreement, any amendments thereto and the notice packet (including the exclusion and objection forms) should be attached to the proposed order as exhibits. 15. The word “conditionally” in paragraph 2 should be replaced with “preliminarily.” 16. The word “preliminarily” should be inserted in paragraph 3 after “hereby” and before “appoints,” and in paragraph 4 after “hereby” and before “appoints.” 17. The phrase “preliminarily approves” should be inserted in paragraph 5 in place of “confirms.” 18. The phrase “to the Settlement Agreement” in paragraph 6 should be replaced with “hereto.” 19. The Gross Settlement Amount should be stated in paragraph 11. 20. The proposed order should include the following statement: “The court orders the parties, their counsel and the settlement administrator to carry out their duties and obligations in accordance with the Settlement Agreement.” The hearing on plaintiffs’ motion for preliminary approval of a class action and PAGA settlement is continued to <u>February 11, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than “amended settlement agreement,” to streamline the court’s review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiffs are ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
2	Balderrama v. Omni Enterprise Inc.	<u>Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement</u>

	2022-01256174	The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$325,000 class action and PAGA settlement. Subject to defendant's submission of the declaration described below, the court grants the motion as follows: \$5,000 for enhancement award to plaintiff (not to exceed); \$97,500 for attorneys' fees (not to exceed); \$20,000 for attorneys' costs (not to exceed); \$6,950 for settlement administration fees (not to exceed); and \$20,000 total PAGA penalties (\$15,000 to LWDA). In the April 30, 2026 order (ROA 181), the court asked (i) whether the plaintiffs in the two cases identified in the Mojarro Declaration (ROA 168) are putative class members and/or aggrieved employees in this case, and (ii) how the settlement in this case will affect the plaintiffs' claims in the two cases identified in the Mojarro Declaration. ROA 181 (No. 5). These issues have not been addressed. Defendant's counsel is ordered to file and serve <u>by September 24, 2026</u> a declaration answering these questions. The final approval hearing is scheduled for <u>February 25, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
3	Clarke v. Purpose Driven Transport Inc. 2024-01421145	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$163,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Pursuant to the court's April 16, 2026 order (ROA 74), plaintiff has provided the estimated average, high and low class payments, and the estimated average, high and low PAGA payments. Lawrence Decl. (ROA 89) ¶¶ 24-25. The parties state that since the time of the last hearing they renegotiated the class period and PAGA period. Supp. Brief (ROA 81) at 3:16-23; Lloyd Decl. (ROA 83) ¶ 5. What class period and PAGA period did Lawrence use to calculate the estimated average high and low individual class and PAGA payments? 2. The Lawrence Declaration (ROA 89) states in paragraph 23 that the Net Settlement Amount is \$66,200 and in paragraph 24 that the Net Settlement Amount is

		\$69,200. Which figure is correct, and which figure did Lawrence use to calculate the estimated average high and low individual class and PAGA payments? 3. In the April 6, 2026 order (ROA 74), the court asked why defendant is paying the settlement in installments. Settlement Agreement ¶ 4.3; <i>see also id.</i> ¶ 12.18. The court stated that if this is due to defendant's financial condition, admissible evidence of defendant's financial condition must be provided, including appropriate financial documents such as balance sheets, cash flow statements, and profit and loss statements. The parties have submitted a declaration from the mediator (ROA 87) and a declaration from Ron Petz (ROA 93). Neither declaration explains defendant's specific financial condition or why the installment plan set forth in the settlement agreement is appropriate and reasonable in light of defendant's financial condition. The Petz Declaration lists various documents without any explanation of what the documents purport to show regarding defendant's financial condition. In addition, none of the exhibits to the Petz Declaration (ROA 93) was filed with the court. Plaintiff states the exhibits will be lodged with the court pursuant to California Rule of Court 3.1302(b) (Supp Brief at 2 n.1), but the court file does not contain any indication that occurred. Plaintiff apparently delivered a multi-page document to Department CX105. The caption page of that document states it is submitted "conditionally under seal/for in-camera review only." As stated above, the court file contains no indication plaintiff lodged the Petz exhibits conditionally under seal. To the extent plaintiff asks the court to review the Petz exhibits in camera, the court declines to do so, as all materials filed in support of plaintiff's motion must be part of the court file for this action. If the parties contend the Petz exhibits are confidential, the parties should have lodged a copy of the agreement conditionally under seal and filed a noticed motion to seal the documents before the September 17, 2026 hearing on this motion; if that remains the parties' position, the parties should promptly do so. 4. Plaintiff's counsel states counsel now seeks costs not to exceed \$14,000, rather than \$12,000. Exhibit G to the Supplemental Lipeles Declaration (ROA 91) states counsel has incurred \$10,971.60 in costs. In light of this, why should the not-to-exceed costs amount be increased? In addition, at final approval, counsel should submit invoices substantiating the Axiom Analytics LLC, Judicate West and Steno Agency, Inc. charges. 5. The court stated in the April 16, 2026 order that while it will not determine the amount of any enhancement
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		award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. The court stated that plaintiff should address in the supplemental filing whether any such unique circumstances exist here. Plaintiff has not identified any unique circumstances. The court preliminarily finds an enhancement award not to exceed \$5,000 reasonable in this case. <u>As to the notice:</u> 6. The notice should be revised consistent with the above. 7. Why is the notice a "supplemental" notice? 8. The second all capitals, bolded statement at the top of the exclusion form should be removed as it duplicates other information on the form. 9. The second all capitals, bolded statement at the top of the objection form should be removed as it duplicates other information on the form. 10. In the fourth and fifth sentences in the third paragraph of the objection form should be removed, as they duplicate other information on the form. 11. In the second sentence of the fourth paragraph of the objection form, the phrase "and all evidence and" should be removed, as should the phrase "(including, without limitation, all briefs, written evidence, and declarations)." 12. The statement in the second part of the last sentence of the fourth paragraph of the objection form that the form must be "mailed to" the settlement administrator is inconsistent with the first part of the same sentence which states the objection form may be "emailed, or postmarked." 13. The last section of the objection form regarding whether the class member is or will be represented by an attorney should be removed. <u>As to the proposed order (ROA 91 Ex. F):</u> 14. The proposed order should be revised consistent with the above. 15. The settlement agreement and any amendments thereto should be collectively defined at the beginning of the proposed order as the "Settlement" and/or the "Settlement Agreement." One of those defined terms should then be used throughout the proposed order rather than "Settlement Agreement and Amendment." 16. As stated in the April 16, 2026 order (ROA 74 No. 44), the settlement agreement, any amendments thereto and
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		the notice packet should be attached as exhibits to the proposed order. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>February 11, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
4	Ellerbe v. New 2025-01531044	<u>Defendant Brad New's Demurrer to First Amended Class Action Complaint</u> Defendant Brad New demurs to the five causes of action in plaintiffs Kim Ellerbe, Brittany Akal and Tiffany Washington's first amended class action complaint. Plaintiffs did not file an opposition. Defendant's demurrer is therefore sustained for the reasons stated in the demurrer and supporting brief. ROA 34. Defendant asks that his demurrer be sustained without leave to amend. A demurrer should be sustained without leave to amend if there is no reasonable probability that the complaint can be cured by amendment. <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318. The burden of proving such reasonable possibility "is squarely on the plaintiff." <i>Id.</i> As noted, plaintiffs did not file an opposition and thus have not demonstrated that any deficiencies in the first amended complaint can be cured by amendment. Defendant's demurrer is sustained without leave to amend. Defendant's Request for Judicial Notice (ROA 32) of Exhibits 1 and 4 is granted, insofar as a court may take judicial notice of the existence of a document in a court file, including the truth of results reached, but a court may not take judicial notice of the truth of hearsay statements in decisions and court files. <i>Richtek USA, Inc. v. UPI Semiconductor Corp.</i> (2015) 242 Cal.App.4h 651, 658. Defendant's Request for Judicial Notice of Exhibits 2 and 3 is denied as it is not necessary to seek judicial notice of documents in the court's file for this action. Defendant's Request for Judicial Notice of Exhibits 5,6 and 7 is denied. Defendant to give notice and to submit a proposed judgment of dismissal by September 24, 2026.

		<u>Defendant Brad New's Motion to Strike Portions of First Amended Class Action Complaint</u> Defendant Brad New moves to strike portions of plaintiffs Kim Ellerbe, Brittany Akal and Tiffany Washington's first amended class action complaint. Plaintiffs did not file an opposition. In a concurrently-issued ruling, the court sustained defendant's unopposed demurrer to the five causes of action in the first amended complaint without leave to amend. Defendant's unopposed motion to strike is therefore denied as moot. Defendant to give notice. <u>Initial Case Management Conference</u> The parties did not file an initial case management conference statement as ordered by the court. 4/30/26 Order (ROA 86); 4/7/26 Order (ROA 27). Plaintiff filed a case management conference statement utilizing Judicial Council Form CM-110 (ROA 69), which, as stated in the court's April 7, 2026 order, is not used in this Complex Civil Department. 4/7/26 Order (ROA 27) ("The Initial Case Management Conference Statement shall be filed at least 5 court days before the conference. <i>Counsel should use pleading paper, not Judicial Council Form CM-110</i>, and should include in the statement a discussion of the applicable subjects set forth in California Rules of Court 3.727 and 3.750(b). The parties are encouraged to meet and confer and file a joint statement") (italics added). Nevertheless, in light of the court's concurrently-issued ruling sustaining defendant Brad New's unopposed demurrer to the first amended class action complaint without leave to amend, the September 17, 2026 Initial Case Management Conference is vacated. Clerk to give notice.
5	Escoto v. VPM Management, Inc. 2021-01232970	<u>Maria Yesenia Escoto Calderon and Rosario Esmaralda Escoto's Motion for Leave to Substitute Successors-in-Interest</u> Maria Yesenia Escoto Calderon and Rosario Esmaralda Escoto move pursuant to Civil Procedure Code section 377.31 for leave to substitute themselves as plaintiffs and successors-in-interest for plaintiff and decedent Jose Escoto in this class action and PAGA lawsuit. For the following reasons, the motion is denied without prejudice. Section 377.31 provides: "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." Pursuant to section 377.32(a), a person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest shall execute and file an affidavit or a declaration stating all of the following:

		(1) the decedent's name; (2) the date and place of the decedent's death; (3) "No proceeding is now pending in California for administration of the decedent's estate"; (4) if the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest; (5) either of the following, as appropriate, with facts in support thereof: (A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding"; or (B) "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding"; (6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding"; and (7) "The affiant or declarant affirms or declares under penalty of perjury under the law of the State of California that the foregoing is true and correct." In addition, a certified copy of the decedent's death certificate shall be attached to the affidavit or declaration. Civ. Proc. Code § 377.32(c). Maria Yesenia Escoto Calderon and Rosario Esmaralda Escoto filed declarations (ROA 150, 151) in support of the motion. The declarations include all of the statements required by section 377.32(a) and a copy of Jose Escoto's death certificate (ROA 150, Ex. 1; ROA 151, Ex. 1). The motion does not, however, address whether a successor-in-interest may be substituted as a plaintiff for a class representative in a class action and for a representative plaintiff in a PAGA action. As the operative first amended complaint (ROA 12) alleges both class allegations and a PAGA claim, the motion is denied without prejudice to Maria Yesenia Escoto Calderon and Rosario Esmaralda Escoto filing another motion to substitute themselves as plaintiffs and successors-in-interest that addresses both of those issues. Plaintiff to give notice. <u>Status Conference</u> The parties did not file a joint status conference statement as ordered by the court. 6/4/26 Order (ROA 155).
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		The September 17, 2026 status conference is continued to <u>January 21, 2027 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
6	Harris v. Orange County Transportation Authority 2022-01284718	<u>Plaintiffs Wayne Harris and Marlene McKinney's Motion for Summary Adjudication</u> Plaintiffs Wayne Harris and Marlene McKinney move for summary adjudication of a claimed issue of duty and against two affirmative defenses asserted by defendant Orange County Transportation Authority (OCTA) and two affirmative defenses asserted by defendant California Department of Transportation (CalTrans). For the following reasons, plaintiffs' motion is denied. A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Cal. Civ. Proc. Code § 437c(f)(1). A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. <i>Id.</i> A motion for summary adjudication "shall proceed in all procedural respects as a motion for summary judgment." <i>Choochagi v. Barracuda Networks, Inc.</i> (2020) 60 Cal.App.5th 444, 453. "The moving party 'bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if [the movant] carries [this] burden of production,' the burden of production shifts to the opposing party 'to make a prima facie showing of the existence of a triable issue of material fact.'" <i>Id.</i> Plaintiffs' complaint alleges two causes of action for inverse condemnation and nuisance. Plaintiffs allege their property located at 17199 Buttonworth Street in Fountain Valley, California has "experienced on-going damage, vibrations and invasion from noise, dust, debris, storm water runoff, among other things, caused by the 405 Freeway construction being carried out by OCTA." Complaint ¶¶ 1, 7. Plaintiffs allege the property "has suffered from continued and expanding cracking, earth movement, vibrations, noise, dust and debris caused by on-going . . . construction," and that the construction has caused widespread cracking along the concrete . . . [c]racking in the home . . . [and] flooding . . . into the backyard." Complaint ¶ 10. <i>Issue Nos. 1 and 2</i>

		Plaintiffs move for summary adjudication of the two following issues: 1. OCTA “has a constitutional duty to pay plaintiffs just compensation because OCTA has admitted that its Interstate 405 improvement project . . . physically damaged plaintiffs’ property”; and 2. CalTrans “has a constitutional duty to pay plaintiffs just compensation because CalTrans has admitted that its [Interstate 405 improvement] project . . . physically damaged plaintiffs’ property.” Citing <i>City of Pasadena v. Superior Court</i> (2014) 228 Cal.App.4th 1228, 1233, plaintiffs assert “[a] public agency has a duty to pay just compensation when it substantially participates “in the planning, approval, construction, or operation of a public project or improvement that proximately caused injury to the plaintiff’s property.”” Brief (ROA 189) 9:17-22; see also <i>id.</i> at 12:26-13:3 (“To trigger the public agency’s duty to pay just compensation in an inverse condemnation action, the plaintiff must show the agency ‘substantially participated in the planning, approval, construction, or operation of a public project or improvement that proximately caused injury to the plaintiff’s property.’ (City of Pasadena, supra, 228 Cal.App.4th at p. 1233”). <i>City of Pasadena</i> does not address a public agency’s alleged “duty to pay just compensation” as an element of an inverse condemnation claim. The portion of <i>City of Pasadena</i> plaintiffs cite states in its entirety: “To state a cause of action for inverse condemnation, the plaintiff must allege the defendant substantially participated in the planning, approval, construction, or operation of a public project or improvement which proximately caused injury to plaintiff’s property.” <i>Id.</i> at 1233. <i>City of Pasadena</i> addresses duty only in the context of the nuisance claim at issue in that case and the defendant’s failure to establish “the nature and extent of its duty of care” to the plaintiff. <i>City of Pasadena</i>, 228 Cal.App.4th at 1237. “To state a claim for inverse condemnation, a plaintiff must allege ‘[1.] a public entity [2.] has taken or damaged their property [3.] for a public use.’” <i>Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.</i> (2024) 102 Cal.App.5th 281, 289. Liability under inverse condemnation principles requires the damage to private property to be substantially caused by an inherent risk presented by the deliberate design, construction, or maintenance of the public improvement. <i>City of Oroville v. Superior Ct.</i> (2019) 7 Cal.5th 1091, 1105. Plaintiffs have not cited any authority standing for the proposition that a “constitutional duty to pay” is an element of an inverse condemnation claim, or that such an alleged duty is “the kind of duty to which the Legislature intended Code of Civil Procedure section 437c, subdivision (f) to apply.” <i>Linden Partners v. Wilshire Linden Associates</i> (1998) 62 Cal.App.4th 508, 519 (stating “an issue of duty” in section 437c(f) applies to negligence claims, an
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insurer's duty to defend, and "if, under the facts and circumstances of a given case, a court finds it appropriate to determine the existence or nonexistence of a duty in the nature of a contractual obligation, it may properly do so by a ruling on that issue presented by a motion for summary adjudication"). In short, although plaintiffs attempt to frame Issue Nos. 1 and 2 as being directed at a proper subject for summary adjudication, plaintiffs do not actually seek summary adjudication of an issue of duty within the meaning of the code. Indeed, plaintiffs' motion papers indicate plaintiffs seek summary adjudication in their favor on the inverse condemnation claim, or several elements thereof. See, e.g., Brief (ROA 189) at 13-14 (discussing elements of inverse condemnation claim); Reply (ROA 247) 8:1-2 ("This motion is about whether there is any liability for inverse condemnation").

As noted above, liability under inverse condemnation principles requires the damage to private property to be substantially caused by an inherent risk presented by the deliberate design, construction, or maintenance of the public improvement. *City of Oroville*, 7 Cal.5th at 1105. Both "inherent risk" and "substantial causation" must be present for a public entity to be liable. *Id.* at 1106. "The inherent risk assessment requires a reviewing court to consider whether the inherent dangers of the public improvement as deliberately designed, constructed, or maintained materialized and were the cause of the property damage." *Id.* "The plaintiff must also establish substantial causation. . . . Liability depends on whether some element of physical, but-for causation is present to link the public improvement and the damage. The damage must be the "'necessary or probable result' of the improvement, or if 'the immediate, direct, and necessary effect' thereof was to produce the damage." [Citation.] Rather than training attention on the mere presence of causation, our cases have focused instead on whether there is proof that the damages 'followed in the normal course of subsequent events' and were 'predominantly' produced by the improvement. [Citation.] At the core of the test is the requirement that -- even in the case of multiple concurrent causes -- the injury to private property is an 'inescapable or unavoidable consequence' of the public improvement as planned and constructed." *Id.* at 1107-08 (italics in original).

Plaintiffs do not address *Oroville* in their opening brief, and, even if plaintiffs had properly noticed a motion for summary adjudication of the inverse condemnation claim, they have not met their burden of establishing no triable issues of material fact exist as to that claim. Plaintiffs' moving papers, including the separate statement, do not sufficiently address, *inter alia*, "inherent risk" or "substantial causation" as discussed in *Oroville*.

On reply, plaintiffs contend *Oroville* is factually distinguishable from this case because *Oroville* involved sewer backup and a property owner who did not install a legally-required backwater valve that would have prevented sewage from entering the plaintiff's building in the event of a sewer main backup. Factual distinctions between *Oroville* and this case are not grounds to conclude the California Supreme Court's ruling regarding the legal analysis applicable to an

inverse condemnation claim does not apply here. *Oroville*, 7 Cal.5th at 1111 (“When public improvements damage private property, property owners not compensated earlier may seek recovery through inverse condemnation claims. But to succeed, such claims must demonstrate more than just a causal link — however tenuous — between the existence of the public improvement and the property damage. Instead, inverse condemnation liability depends on whether the property damage was the probable result or necessary effect of an inherent risk associated with the design, construction, or maintenance of the relevant public improvement”); *see also Simple Avo Paradise Ranch*, 102 Cal.App.5th at 299 (“The California Supreme Court recently examined the principles underlying an inverse condemnation claim in *Oroville*”). Plaintiffs’ motion for summary adjudication of Issue Nos. 1 and 2 is denied.

Issue Nos. 3, 4, 5 and 6

Plaintiffs also seek summary adjudication of two affirmative defenses alleged by OCTA and two affirmative defenses alleged by CalTrans. Specifically, plaintiffs seek summary adjudication of OCTA’s second affirmative defense of “no damages attributable to defendant” and sixteenth affirmative defense of “lack of proximate cause,” and summary adjudication of CalTrans’ eighth affirmative defense of “no legal cause” and twenty-eighth affirmative defense of “no taking.” (For unexplained reasons, OCTA filed two answers to plaintiffs’ complaint. ROA 15, 20. The first answer alleges 34 affirmative defenses; the second answer alleges 40 affirmative defenses. Plaintiffs’ motion appears directed at OCTA’s second answer (ROA 20).) Plaintiffs argue summary adjudication should be granted in their favor on these four affirmative defenses because OCTA and CalTrans have admitted the project physically damaged plaintiffs’ property.

OCTA’s second affirmative defense (entitled “no damages attributable to defendant”) states: “Plaintiff’s claims are barred because Plaintiff sustained no cognizable damages attributable to Answering Defendant.” ROA 20 (at 2).

OCTA’s sixteenth affirmative defense (entitled “lack of proximate cause”) states: “Answering Defendant is informed and believes, and thereupon alleges that any alleged conduct or omission by Answering Defendant was not the cause in fact, or proximate cause, of any injuries or damages alleged by Plaintiff. This defense is alleged in the alternative and does not admit any of the allegations contained in the Complaint.” ROA 20 (at 5).

CalTrans’ eighth affirmative defense (entitled “no legal cause”) states: “CalTrans alleges that its acts, omissions, and conduct were not the legal cause of any taking, damaging, injury, loss, or harm alleged to have been sustained by the Plaintiffs.” ROA 22 (at 3).

Caltrans’ twenty-eighth affirmative defense (entitled “no taking”) states: “The acts or omissions of CalTrans, if any, did not amount to a taking or damaging within the meaning of Section 19 of Article

I of the California Constitution or of the Fifth Amendment of the United States Constitution.” ROA 22 (at 7).

As stated above, summary adjudication as to one or more affirmative defenses may be granted if the moving party establishes “there is no merit to an affirmative defense.” Civ. Proc. Code § 437c(f)(1). “Generally, a party must raise an issue as an affirmative defense where the matter is not responsive to essential allegations of the complaint. [Citations.] Thus, where a defendant relies on facts not put in issue by the plaintiff, the defendant must plead such facts as an affirmative defense. [Citation.] ‘Where, however, the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not “new matter,” but only a traverse.’” *Bevill v. Zoura* (1994) 27 Cal.App.4th 694, 698.

Applying these concepts, and notwithstanding that OCTA and CalTrans labeled them as such, the court questions whether OCTA’s second and sixteenth affirmative defenses and CalTrans’ eighth and twenty-eighth affirmative defenses are in fact affirmative defenses, as each appears to assert that essential allegations of plaintiffs’ complaint (causation, damages) are not true. Thus, whether these “affirmative defenses” may properly be the subject of a summary adjudication motion is questionable.

That being said, even construing each as a proper affirmative defense, plaintiffs’ motion is still denied because plaintiffs do not identify the elements of each defense as to which they seek summary adjudication and have not shown that one or more elements of each defense cannot be established. The court therefore cannot conclude that plaintiffs have demonstrated that one or more elements of each defense cannot be established. Plaintiffs’ motion for summary adjudication of Issue Nos. 3, 4, 5 and 6 is denied.

Plaintiffs’ Request for Judicial Notice was not material to the disposition of the motion.

Defendants to give notice.

Defendants Orange County Transportation Authority and California Department of Transportation’s Motion for Summary Judgment or, in the alternative, Summary Adjudication

Defendants Orange County Transportation Authority (OCTA) and the California Department of Transportation (CalTrans) move for summary judgment or, in the alternative, summary adjudication against plaintiffs Wayne Harris and Marlene McKinney’s complaint. For the following reasons, defendants’ motion is denied.

A defendant seeking summary judgment bears its burden of showing that a cause of action has no merit if the defendant shows that one or more elements of the cause of action cannot be established, or that the defendant has a complete defense to the cause of action. Cal. Civ. Proc. Code § 437c(p)(2); *Aguiar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-51.

If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840. If the defendant meets this initial burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. Cal. Civ. Proc. Code § 437c(p)(2); *Aguilar*, 25 Cal.4th at 850-51.

A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Cal. Civ. Proc. Code § 437c(f)(1). A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. *Id.*

A motion for summary adjudication "shall proceed in all procedural respects as a motion for summary judgment." *Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444, 453. "The moving party 'bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if [the movant] carries [this] burden of production,' the burden of production shifts to the opposing party 'to make a prima facie showing of the existence of a triable issue of material fact.'" *Id.*

Plaintiffs' complaint alleges two causes of action for inverse condemnation and nuisance. Plaintiffs allege their property located at 17199 Buttonworth Street in Fountain Valley, California has "experienced on-going damage, vibrations and invasion from noise, dust, debris, storm water runoff, among other things, caused by the 405 Freeway construction being carried out by OCTA." Complaint ¶¶ 1, 7. Plaintiffs allege the property "has suffered from continued and expanding cracking, earth movement, vibrations, noise, dust and debris caused by on-going . . . construction," and that the construction has caused widespread cracking along the concrete . . . [c]racking in the home . . . [and] flooding . . . into the backyard." Complaint ¶ 10.

"To state a claim for inverse condemnation, a plaintiff must allege '[1.] a public entity [2.] has taken or damaged their property [3.] for a public use.'" *Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.* (2024) 102 Cal.App.5th 281, 289. Liability under inverse condemnation principles requires the damage to private property to be substantially caused by an inherent risk presented by the deliberate design, construction, or maintenance of the public improvement. *City of Oroville v. Superior Ct.* (2019) 7 Cal.5th 1091, 1105.

The elements of a private nuisance action are (1) the plaintiff must prove an interference with its use and enjoyment of its property; (2) the invasion of the plaintiff's interest in the use and enjoyment of the land must be substantial, i.e., it caused the plaintiff to suffer substantial actual damage, (3) the interference with the protected interest must not only be substantial, it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land. *Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1176.

Summary adjudication

Defendants' Notice of Motion states that they seek, as an alternative to summary judgment, summary adjudication of four issues:

1. Whether defendants are entitled to summary adjudication of plaintiffs' first cause of action for inverse condemnation, on the grounds that plaintiffs cannot establish substantial causation or inherent risk as required under *City of Oroville v. Superior Court*, 7 Ca1.5th 1091 (2019), and *Belair v. Riverside County Flood Control District*, 47 Ca1.3d 550 (1988);
2. Whether defendants are entitled to summary adjudication of plaintiffs' first cause of action for inverse condemnation, on the grounds that plaintiffs' claims based on noise, dust, fumes, shocks, and vibrations are independently noncompensable as a matter of law under *Lombardy v. Peter Kiewit Sons' Co.*, 266 Cal.App.2d 599 (1968), and *People ex rel. Dept of Pub. Works v. Symons*, 54 Ca1.2d 855 (1960);
3. Whether defendants are entitled to summary adjudication of plaintiffs' second cause of action for nuisance, on the grounds that Civil Code section 3482 provides complete statutory immunity for construction activities expressly authorized by Public Utilities Code section 130240, Public Contract Code section 6820 et seq., and Streets and Highways Code sections 90 and 215.5; and
4. Whether defendants are entitled to summary adjudication of plaintiffs' second cause of action for nuisance, on the grounds that plaintiffs cannot establish the essential elements of private nuisance under CACI No. 2021, including that defendants' conduct was intentional and unreasonable, or unintentional but negligent or reckless, and that the gravity of any alleged harm outweighs the substantial public benefit of the 1-405 Improvement Project.

Notice of Motion (ROA 193) 2:23-3:15.

California Rule of Court 3.1350(b) states in pertinent part: "If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty

		must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” Cal. R. Ct. 3.1350(b). California Rule of Court 3.1350(d) states: (1) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify: (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion. (2) The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion. Cal. R. Ct. 3.1350(d). Defendants’ separate statement does not comply with rule 3.1350(b). ROA 163. The separate statement states defendants “submit the following Separate Statement of Undisputed Material Facts in support of [their] Motion for Summary Judgment on the complaint filed by Plaintiffs . . . as follows: . . .” ROA 163 (at 2:5-7). Forty-six allegedly undisputed material facts follow. <i>Id.</i> The summary adjudication issues identified in defendants’ notice of motion are not “repeated, verbatim, in the separate statement of undisputed material facts” nor, in contravention of rule 3.1350(d), does the separate statement separately identify “each cause of action . . . that is the subject of the motion,” and “each supporting material fact . . . with respect to the cause of action . . . that is the subject of the motion.” Cal. R. Ct. 3.1350(d). Moreover, the materiality of the 46 allegedly undisputed material facts to each of the causes of action is unclear and unexplained. For example, the court cannot discern the materiality of Material Fact Nos. 43, 44, 45 or 46 to the causes of action on which defendants seek summary judgment or the issues of which defendants seeks summary adjudication. “The paragraphs in a separate statement should be limited to facts that address the elements of a cause of action or an affirmative defense.” <i>Beltran v. Hard Rock Hotel Licensing, Inc.</i> (2023) 97 Cal.App.5th 865, 875; <i>see also</i> Cal. R. Ct. 3.1350(d)(2) (“The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion”). Preparation of a proper separate statement is not a pedantic exercise. “The separate statement serves two important functions in a summary judgment proceeding: It notifies the parties which material facts are at issue, and it provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.” <i>Id.</i> A separate statement that lists 46 undifferentiated facts in relation to two different causes of action and four summary adjudication issues is neither convenient nor expeditious. The court identified similar
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defects in defendants' separate statement filed in support of a earlier motion in this case. See 5/8/25 Order (ROA 119).

Perhaps in an attempt to cure (some of) the above deficiencies, defendants filed a "Notice of Errata re Defendants' Separate Statement of Undisputed Material Facts and Memorandum of Points and Authorities in Support of Motion for Summary" on June 16, 2026. ROA 212. The Notice of Errata states "[t]he original Separate Statement of Undisputed Material Facts and the Memorandum of Points and Authorities filed in support of Defendants' Motion for Summary Judgment contained a formatting error in the SSUMF and the citations thereto," and that defendants "file this errata to correct that formatting error. No substantive changes have been made to any argument or to the substance of any fact or citation containing in the original filing." ROA 212.

As an initial matter, contrary to defendants' claim in the reply that the Notice of Errata "was timely filed" (ROA 242 at 4:4), it was late-filed as it was filed and served less than 81 days before the initial August 27, 2026 hearing date. See Civ. Proc. Code § 437c(a)(2). In addition, contrary to defendants' claim that "no substantive changes" were made to the separate statement, the June 16, 2026 separate statement contains 58 allegedly undisputed material facts, not 46. Furthermore, the late-filed separate statement still does not comply with Rule 3.1350, as it identifies 2 issues for summary adjudication, not 4, and neither issue is a verbatim statement of any summary adjudication issue stated in the Notice of Motion. For all of these reasons, the court declines to consider defendants' late-filed Notice of Errata.

Due to the deficiencies in defendants' separate statement discussed above, defendants' motion for summary adjudication is denied. See also *Pierson v. Helmerich & Payne Int'l Drilling Co.* (2016) 4 Cal.App.5th 608, 617 ("A motion for summary judgment or summary adjudication will be defective if the moving party fails to (1) accurately identify the facts that are material to the legal theory upon which the motion is based; (2) actually include those material facts in the separate statement; and (3) reference evidence establishing, either directly or by inference, each material fact the moving party claims is undisputed"). It is also denied, however, because plaintiffs have submitted evidence disputing many of the facts in defendants' separate statement. See, e.g., Plaintiffs' Opposing Separate Statement (ROA 222) Nos. 17, 18, 19, 20, 22, 33, 34, 37, 39, 41, 42. The separate statement "effectively concedes the materiality of whatever facts are included. Thus, if a triable issue is raised as to any of the facts in [the] separate statement, the motion must be denied[.]" *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 (italics in original) (citation omitted).

Summary judgment

As defendants' summary adjudication motion is denied as discussed above, to prevail on their motion, defendants must demonstrate they are entitled to summary judgment on both of plaintiffs' causes

		of action. With respect to the inverse condemnation claim, defendants argue plaintiffs cannot establish substantial causation because (i) "a majority" of the damages plaintiffs attribute to the freeway construction project allegedly existed before construction began, and (ii) plaintiffs cannot establish the damages were substantially caused by an inherent risk presented by the deliberate design, construction or maintenance of the freeway project. Defendants also argue plaintiffs cannot recover for damages resulting from noise, dust, fumes, shocks or vibrations. Plaintiffs have demonstrated triable issues of material fact on the inverse condemnation claim. See, e.g., Plaintiffs' Opposing Separate Statement (ROA 222) Nos. 17, 18, 19, 20, 22, 33, 34, 37, 39, 41, 42. Among other evidence, plaintiffs presented the declaration of their civil and geotechnical engineering expert, Mohammad Joolazadeh, in which he opines that the freeway project "caused physical damage to 'each back yard wall'" at plaintiffs' property, that "among other things, the project construction slope facing the Subject Property places a surcharge upon the backyard wall which has adversely affected the structural integrity of the wall," and that the "construction of this slope has caused mixture of water and soil from the public improvement to enter into the backyards through the porous masonry block wall due to lack of installation of proper drainage control devices at the base of the slope." Joolazadeh Decl. (ROA 228) ¶ 6. Plaintiffs also presented defendants' responses to requests for admissions in which defendants admitted their "inspection of the Subject Property before this lawsuit found damage to the Subject Property substantially caused by the Project," and "the Project physically damaged each back yard wall at the Subject Property." Kehoe Decl. (ROA 228, 234) Ex. 11 (Response to RFA Nos. 2, 17) & Ex. 12 (Response to RFA Nos. 2, 17). In sum, plaintiffs have demonstrated material disputed factual issues in this factually intensive case. Defendants' unopposed Request for Judicial Notice (ROA 167) of Exhibits A, B, C, D and E, and Exhibit 6 is granted. Plaintiffs' Evidentiary Objections to the Jorgenson, Kahzeni and Thompson Declarations (ROA 230, 231, 232) are overruled. Defendants' Evidentiary Objections to the Joolazadeh and Vahid Declarations (ROA 244, 245) are overruled. Plaintiffs to give notice.
7	Hernandez v. Stanley G. Alexander, Inc. 2022-01291342	<u>Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$440,000 class action and PAGA settlement. Subject to plaintiff's submission of the declaration described below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff;

		\$110,000.00 for attorneys' fees; \$15,108.62 for litigation costs (after deducting unexplained \$750 "admin fee" and unsubstantiated \$2,900 "Berger Consulting Group" charge); \$7,750.00 for settlement administration costs; and \$20,000.00 total PAGA penalties (\$15,000.00 to the LWDA). Plaintiff is ordered to file and serve <u>by September 24, 2026</u> a declaration from the settlement administrator stating whether the administrator received any workweek disputes. If the administrator received any workweek disputes, the settlement administrator should explain the resolution of the dispute(s) and attach to the declaration copies of all documents relevant to the dispute(s). The final accounting hearing is scheduled for <u>September 16, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
8	Midnight v. Toyota Motor Sales, U.S.A., Inc. 2026-01546753	<u>Defendants Toyota Motor Sales, U.S.A., Inc. and Toyota Motor North America, Inc.'s Demurrer to Class Action Complaint</u> Defendants Toyota Motor Sales, U.S.A., Inc. and Toyota Motor North America, Inc. demur to the five causes of action in plaintiff Ryan Christopher Midnight's class action complaint. For the following reasons, defendants' demurrers are sustained in part and overruled in part. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318. A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. <i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05. Questions of fact cannot be decided on demurrer. <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556. Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. <i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 n.7. Plaintiff alleges claims individually and on behalf of a proposed class of consumers who paid out of pocket for the purchase, repair and/or replacement of batteries or other electric storage devices at a California Toyota dealership for a 2010 model year or later Toyota car that qualifies as a "Partial Zero Emissions Vehicle" (PZEV) or

was marketed by Toyota as a PZEV. Plaintiff alleges the battery in these vehicles should have been covered by an extended warranty of 10 years or 150,000 miles pursuant to Code of Regulations, Title 13, section 1962. Complaint ¶ 2. Plaintiff alleges “Toyota and its authorized dealerships have systematically refused to extend the warranty on Devices in vehicles that were PZEVs or that Toyota claimed were PZEVs,” and that instead of offering and honoring the extended warranty, defendants purportedly failed to inform customers of the extended warranty, told consumers the warranty did not apply to their vehicles, and/or told consumers they needed to pay out of pocket for the replacement of the battery devices within the extended warranty period. Complaint ¶ 3.

Plaintiff alleges “his Prius qualifies as a PZEV” (Complaint ¶ 30), and that defendants’ marketing states the “2014 Prius is certified as a Super Ultra Low Emission Vehicle (SULEV) and an Advanced Technology Partial Zero Emissions Vehicle (AT-PZEV) in California and in states applying California emission standards” (Complaint ¶ 30), and that the 2014 Prius’ “hybrid-related components, including the HV battery, battery control module, hybrid control module and inverter with converter are covered . . . [i]n applicable states [for] 15 years/150,000 miles with the exception of the hybrid battery, which is covered for 10 years/150,000 miles.” Complaint ¶ 31; see *also id.* ¶ 40 (“Toyota had publicly identified and marketed Plaintiff Midnight’s 2014 Prius as a PZEV, and therefore, it was entitled to coverage under the Mandate and Mandated Extended Warranty”).

Plaintiff alleges five causes of action: (i) unjust enrichment; (ii) fraud; (iii) negligent misrepresentation; (iv) violation of the Unfair Competition Law (UCL), Business and Professions Code § 17200 et seq.; and (v) violation of the False Advertising Law (FAL), Business and Professions Code § 17500 et seq.

Defendants assert plaintiff’s complaint fails to state facts sufficient to constitute a cause of action because plaintiff’s vehicle, a 2014 Prius C, is not a PZEV subject to the extended warranty. Defendants’ argument ignores the allegations of the complaint and the requirement that the court must accept as true the factual allegations of the complaint. *Blank*, 39 Cal.3d at 318. As stated above, plaintiff alleges his vehicle, a 2014 Prius C, “qualifies as a PZEV”; plaintiff also alleges Toyota has “publicly identified and marketed [p]laintiff Midnight’s 2014 Prius as a PZEV.” Defendants’ contentions that plaintiff’s 2014 Prius C is not a PZEV subject to the extended warranty, and that a “Prius C” is not the same car as a “Prius,” are factual disputes that cannot be resolved on demurrer.

Statute of limitations

Defendants contend a two-year statute of limitations applies to plaintiff’s negligent misrepresentation claim, and that because plaintiff did not sue until February 2026 (three years after plaintiff alleges he “began to experience problems” with his car “in or around early February 2023”), the negligent misrepresentation claim is time-barred. Defendants also argue plaintiff’s unjust

		enrichment, fraud and FAL claims, which are subject to a three-year limitations period, are time-barred. A two-year statute of limitations typically applies to a negligent misrepresentation claim. The applicable statute of limitations, however, depends on “the nature of the cause of action, i.e., the ‘gravamen’ of the cause of action.” <i>E-Fab, Inc. v. Accts., Inc. Servs.</i> (2007) 153 Cal.App.4th 1308, 1316. Here, the gravamen of plaintiff’s negligent misrepresentation claim is fraud. See, e.g., Complaint ¶¶ 83, 85. Civil Procedure Code section 338(d) provides that an action for fraud or mistake shall be commenced with three years after the discovery of the facts constituting fraud or mistake. See, e.g., <i>Broberg v. The Guardian Life Ins. Co. of Am.</i> (2009) 171 Cal.App.4th 912, 920 (“The limitations period for Powell’s fraud and negligent misrepresentation claims is three years. [Citation.] The limitations period begins to run only when the aggrieved party discovers “the facts constituting the fraud”) “When a ground for objection to a complaint, such as the statute of limitations, appears on its face or from matters of which the court may or must take judicial notice, a demurrer on that ground is proper.” <i>Duggal v. G.E. Capital Communications Services, Inc.</i> (2000) 81 Cal.App.4th 81, 86. “[J]udicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed.” <i>Cruz v. County of Los Angeles</i> (1985) 173 Cal.App.3d 1131, 1134. A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. <i>Lee v. Hanley</i> (2015) 61 Cal.4th 1225, 1232. In order for the bar to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. <i>Id.</i> In addition, “[r]esolution of the statute of limitations issue is normally a question of fact.” <i>E-Fab, Inc.</i>, 153 Cal.App.4th at 1320. “More specifically, as to accrual, ‘once properly pleaded, belated discovery is a question of fact.’” <i>Id.</i> Here, the complaint does not clearly and affirmatively show on its face that the unjust enrichment, fraud, negligent misrepresentation and FAL claims are barred by the three-year statute of limitations. Plaintiff alleges that “[i]n or around early February 2023” his car “began to experience problems,” and that he thereafter made various efforts to have the alleged problems addressed. Complaint ¶¶ 37-39, 42-45. Plaintiff alleges that following these efforts he ultimately, “around the end of February 2023,” contacted defendants’ customer service by telephone, and was advised by a Toyota representative that plaintiff’s car “was out of the original warranty period, and so, if Plaintiff Midnight wanted the repairs, he would need to pay out of pocket for the purchase, replacement, and/or repair at one of Toyota’s dealerships.” Complaint ¶¶ 46-48. Plaintiff filed suit on February 9, 2026. ROA 2. The court cannot conclude that plaintiff’s allegations clearly and affirmatively show
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that the unjust enrichment, fraud, negligent misrepresentation and FAL claims are time-barred

First cause of action – unjust enrichment

The first cause of action alleges unjust enrichment. Plaintiff alleges defendants' misrepresentations allowed defendants to charge consumers for the repair or replacement of batteries that should have been covered under the extended warranty, causing defendants to earn profits to which they were not entitled, thereby unjustly enriching them. Complaint ¶¶ 65-68.

"The elements for a claim of unjust enrichment are 'receipt of a benefit and unjust retention of the benefit at the expense of another.' [Citation.] 'The theory of unjust enrichment requires one who acquires a benefit which may not justly be retained, to return either the thing or its equivalent to the aggrieved party so as not to be unjustly enriched.'" *Lyles v. Sangadeo-Patel* (2014) 225 Cal.App.4th 759, 769.

Some courts have held that unjust enrichment is not a cause of action (see *Levine v. Blue Shield of California* (2010) 189 Cal.App.4th 1117, 1138; *Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370), and other courts have recognized it as a cause of action (see *Peterson v. Cellco Partnership* (2008) 164 Cal.App.4th 1583, 1593; *Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238; *Lyles*, 225 Cal.App.4th at 769).

In *Sepanossian v. National Ready Mixed Concrete Co.* (2023) 97 Cal.App.5th 192, the court found on a motion for judgment on the pleadings that where a plaintiff states a claim for violation of the UCL under the fraudulent and unfairness prongs, a claim for unjust enrichment is unnecessary:

"More fundamentally, '[b]ecause we have found that [Sepanossian's] remedies at law are adequate' (i.e., his count alleged under the UCL), a separate claim for restitution is unnecessary. (*Collins v. eMachines, Inc.* (2011) 202 Cal.App.4th 249, 260, 134 Cal.Rptr.3d 588 (*Collins*) [on review of a successful motion for judgment on the pleadings, where appellate court determined plaintiffs stated valid claims under the UCL, Consumers Legal Remedies Act, and fraud, "a claim for restitution, alleging that [defendant] has been unjustly enriched by its fraud, is unnecessary"].) 'This conclusion follows from the general principle of equity that equitable relief (such as restitution) will not be given when the plaintiff's remedies at law are adequate.' (*Ibid.*)

"Here, the gravamen of Sepanossian's unjust enrichment claim is that Ready Mix was unjustly enriched by customers paying fees that were fraudulent and unfair under the UCL, and that such customers are entitled to recover those fees from Ready Mix. The unjust enrichment claim merely incorporates the allegations, derivative of the UCL claim, that Ready Mix received a financial advantage—money obtained from misleadingly named fees charged to its customers—which it unjustly retained at their expense. Restitution

is already an available remedy under the UCL cause of action, within the broad equitable discretion of the trial court. (See § 17203 [restitution is available “to restore to any person in interest any money or property . . . which may have been acquired by means of such unfair competition”]; see also *In re Tobacco Cases II* (2015) 240 Cal.App.4th 779, 790, 192 Cal.Rptr.3d 881.) Thus, a separate claim is unnecessary for Sepanossian to recover restitution. ‘In light of the adequate legal remedies, we conclude the complaint does not state a claim for restitution based on unjust enrichment.’”

Sepanossian, 97 Cal.App.5th at 207-08.

Here, the gravamen of plaintiff’s unjust enrichment claim is that defendants were unjustly enriched by plaintiff and the putative class paying for repairs and/or replacement of car parts that should have been covered under the extended warranty, and that plaintiff and the putative class are entitled to recover the extra profits from defendants. Complaint ¶¶ 68-69. The unjust enrichment claim incorporates the allegations, derivative of the UCL and FAL claims, that defendants received a financial benefit—money obtained from repairs or replacement of parts that should have been covered under the extended warranty and thus free without charge—which they unjustly retained at plaintiff’s and the putative class members’ expense. The demurrer to the first cause of action for unjust enrichment is sustained with leave to amend.

Second and third causes of action – fraud and negligent misrepresentation

Defendants argue the fraud and negligent misrepresentation causes of action fail to state claims because plaintiff did not plead the claims with particularity.

The second cause of action alleges fraud by misrepresentation and fraud by concealment. The elements of a fraud by misrepresentation claim are: (i) misrepresentation, (ii) knowledge of the falsity or scienter, (iii) intent to defraud—that is, induce reliance, (iv) justifiable reliance, and (v) resulting damages. *Lazar v. Superior Ct.* (1996) 12 Cal.4th 631, 638. “In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” *Id.* at 645. “This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.

The elements of a fraud by concealment claim are: “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” *Blickman Turkus*,

LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868.

Plaintiff alleges “[d]efendants, either directly or by way of their agents, made affirmative false and misleading statements regarding the classification of the Class Vehicles as PZEVs; and the applicability of the Mandate and the Mandated Extended Warranty to Plaintiff Midnight’s and Class Members’ Class Vehicles”; “[d]efendants had knowledge of the falsity of the facts in their misleading statements and/or omissions and/or concealments at the time they were made”; defendants “fraudulently omitted and concealed material facts regarding the true classification of Toyota vehicles and the applicability of the Mandate and the Mandated Extended Warrants to Plaintiff Midnight’s and Class Members’ Class Vehicles”; “[d]efendants owed Plaintiff Midnight and Class Members a duty to disclose the Mandate, whether their Class Vehicles were properly classified as PZEVs, were subject to the Mandated Extended Warranty period, and to inform Plaintiff Midnight and Class Members that they did not have to pay out-of-pocket for the purchase, replacement or repairs of any Class Vehicle Devices covered by the Mandated Extended Warranty”; “[d]efendants’ employees and agents were trained and encouraged to act in a fraudulent manner, such that when Plaintiff Midnight or any Class Member sought an explanation of the Mandate and its applicability to their Class Vehicles, Defendants made further misleading statements and omissions to further their fraudulent acts and convince Plaintiff Midnight and Class Members that they needed to pay out-of-pocket to purchase, replace, and/or repair their Class Vehicles’ Devices”; plaintiff “materially relied upon the statements, omissions, and concealment by paying out-of-pocket for the purchase, replacement, and/or repair of their Class Vehicles’ Devices, which no reasonable consumer would have paid if Defendants were honest about the Mandate and the true facts regarding the applicability of the Mandated Extended Warranty to their Class Vehicles”; and “[a]s a direct and proximate result of Defendants’ misleading statements and/or omissions, Plaintiff and Class Members were damaged.” Complaint ¶¶ 72-80, 84.

Plaintiff’s allegations are sufficiently specific to state a claim for fraud by misrepresentation and a claim for fraud by concealment.

The third cause of action alleges negligent misrepresentation. The elements of a negligent misrepresentation claim are: “(1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.” *Apollo Capital Fund LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 243. “[T]he causal elements, particularly the allegations of reliance, must be specifically pleaded.” *Id.*

Plaintiff alleges “[t]hrough their communications with Plaintiff Midnight and Class Members, and in the course of their regular business, Defendants made representations and/or omissions to Plaintiff Midnight and Class Members of material facts concerning

the true classification of the Class Vehicles, the Mandate, and the Mandated Extended Warranty and Devices," i.e., that the extended warranty did not apply to plaintiff's vehicle, and that "if Plaintiff Midnight wanted the repairs and to replace his battery, he would need to pay out of pocket." Complaint ¶¶ 42-45. Plaintiff further alleges defendants made the representations "without reasonable grounds for believing them to be true"; that defendants made the representations "with the intent to induce Plaintiff Midnight and Class Members into paying for the purchase, replacement or repairs of the Class Vehicle Devices"; that plaintiff "did justifiably and reasonably rely on Defendants' representations and omissions" as plaintiff "would not have paid for the purchase, replacement or repairs of the Class Vehicle Devices without such statements and/or omissions made by Defendants and if they knew the Devices would be replaced without cost to Plaintiff Midnight and Class Members"; and as a result, plaintiff "lost monies [he] overspent on the PZEVs Devices." Complaint ¶¶ 83-91.

Plaintiff's allegations are sufficiently specific to state a claim for negligent misrepresentation.

Defendants' demurrers to the second and third causes of action are overruled.

Fourth and fifth causes of action – violation of UCL and FAL

The fourth cause of action alleges violation of the UCL, Business & Professions Code section 17200 et seq. The UCL prohibits "any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising." The UCL's scope is broad and does not proscribe specific practices, but defines "unfair competition" to include "any unlawful, unfair, or fraudulent business act or practice." *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180. Because the statute is written in the disjunctive, there are three varieties of unfair competition: (1) unlawful acts or practices; (2) unfair acts or practices; and (3) fraudulent acts or practices. *Id.*

The fifth cause of action alleges violation of the FAL, Business and Professions Code § 17500 et seq. The FAL makes it unlawful "for any person, firm, corporation or association, or any employee thereof with intent directly or indirectly to dispose of real or personal property or to perform services, professional or otherwise, or anything of any nature whatsoever or to induce the public to enter into any obligation relating thereto, to make or disseminate or cause to be made or disseminated before the public in this state, or to make or disseminate or cause to be made or disseminated from this state before the public in any state, in any newspaper or other publication, or any advertising device, or by public outcry or proclamation, or in any other manner or means whatever, including over the Internet, any statement, concerning that real or personal property or those services, professional or otherwise, or concerning any circumstance or matter of fact connected with the proposed performance or disposition thereof, which is untrue or misleading, and which is known, or which by the exercise of reasonable care

should be known, to be untrue or misleading, or for any person, firm, or corporation to so make or disseminate or cause to be so made or disseminated any such statement as part of a plan or scheme with the intent not to sell that personal property or those services, professional or otherwise, so advertised at the price stated therein, or as so advertised.” Bus. & Prof. Code § 17500.

Defendants argue plaintiff lacks standing to bring a UCL or FAL claim because plaintiff did not allege he relied on any statements about the PZEV-specific 10 year/150,000 mile warranty in purchasing his vehicle in 2014, and that any such reliance was in any event unreasonable. Brief (ROA 27) 9:11-13, 9:19-21.

Plaintiff’s claims, however, rest on the out-of-pocket expenses plaintiff claims he incurred because defendants told him the extended warranty did not apply to his car, not on the purchase price of the car. Plaintiff alleges “Toyota had publicly identified and marketed Plaintiff Midnight’s 2014 Prius as a PZEV, and therefore, it was entitled to coverage under the Mandate and Mandated Extended Warranty”; and that “[a]ware of the Mandate and Mandated Extended Warranty, Plaintiff Midnight thought Toyota should have to replace the battery at no cost to Plaintiff Midnight.” Complaint ¶¶ 40-41. Plaintiff also alleges he informed several Toyota dealerships about the extended warranty, but was told the extended warranty did not apply, and that Longo Toyota told plaintiff that if he “wanted the repairs and to replace his battery, he would need to pay out of pocket.” *Id.* ¶¶ 42-45. Plaintiff alleges he called defendants’ customer service number and was told by a Toyota customer service representative that the extended warranty did not apply, and that if plaintiff wanted the repairs, he would have to pay out of pocket for the purchase, replacement and/or repair of the battery for his vehicle. *Id.* ¶ 46-48. Plaintiff alleges that based on the representations of Toyota customer service and the various Toyota dealerships, he “agreed to pay Santa Margarita Toyota approximately \$5,000 out of pocket to replace his 2014 Prius’ batter.” *Id.* ¶ 49. These allegations are sufficient at this juncture to establish plaintiff’s standing to pursue the UCL and FAL claims.

Defendants also argue plaintiff’s reliance “on the press release in deciding to purchasing his Prius C” was unreasonable. Brief (ROA 27) 10:4-6. This argument is unpersuasive for the reasons stated above. Moreover, the reasonableness of plaintiff’s alleged reliance is a factual dispute that cannot be resolved on demurrer. See *Cicone v. URS Corp.* (1986) 183 Cal.App.3d 194, 205 (“Whether reliance is justified is a question of fact for the determination of the trier of fact”).

Defendants’ contention plaintiff “sustained no injury in fact, and suffered no loss of money or property” is also unpersuasive. Plaintiff alleges that “[b]ased on the representations of Toyota; Longo Toyota; and Santa Margarita Toyota” that the extended warranty did not apply, plaintiff “agreed to pay Santa Margarita Toyota approximately \$5,000 out of pocket to replace his 2014

		Prius' battery," a service that "should have been covered free of charge. Complaint ¶ 49; see also <i>id.</i> ¶¶ 27, 43, 111. Defendants' demurrers to the fourth and fifth causes of action are overruled. Defendants' unopposed Request for Judicial Notice (ROA 32) of Exhibits 1 and 2, which are copies of two executive orders from the California Environmental Protection Agency Air Resources Board, is granted, although neither document was material to the disposition of the demurrer for the reasons state above. Defendants' Request for Judicial Notice of Exhibit 3, a purported October 16, 2013 press release, is denied, although the document was not material to the disposition of the demurrer for the reasons stated above. Should plaintiff desire to amend the complaint to address the deficiencies identified above, plaintiff must file and serve the amended complaint by October 1, 2026. Plaintiff to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed September 9, 2026 (ROA 42), and based thereon continues the September 17, 2026 status conference to <u>January 21, 2027 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
9	Padilla v. De Vries International, Inc. 2021-01223097	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$195,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents described below, the court grants the motion as follows: \$5,000 for enhancement award to plaintiff (not to exceed); \$58,500 for attorneys' fees (not to exceed); \$20,000 for attorneys' costs (not to exceed); \$6,000 for settlement administration fees (not to exceed); and \$10,000 total PAGA penalties (\$7,500 to LWDA). Plaintiff is ordered to file and serve <u>by September 24, 2026</u> a revised class notice (in English and Spanish) that removes the reference in the last sentence of the first paragraph of the "Further Information" section to viewing documents "at the Orange County Superior Court located at 751 West Santa Ana Boulevard, Santa Ana, California 92701." As the court previously advised the parties

		(4/30/26 Order (ROA 138) No. 11) there is no clerk's office in the Civil Complex Center of the Orange County Superior Court. The final approval hearing is scheduled for <u>February 25, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
10	Retana v. Bar Bakers, LLC 2019-01096563	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of an \$1,000,000 PAGA settlement. Subject to plaintiffs' submission of the documents identified below, the court grants the motion as follows: \$300,000.00 for attorneys' fees (see 12/11/25 Order (ROA 314) No. 8); \$26,246.40 for attorneys' costs; \$11,980.00 for settlement administration fees (see No. 1 below); and \$661,773.60 total PAGA penalties (\$496,330.20 to LWDA). 1. The court deducted \$1,270 from the requested settlement administration fees of \$13,250 for (i) a duplicative \$750 language translation fee; (ii) an unexplained \$240 increase in "settlement calculations" charges (compare Supp. Carraher Decl. (ROA 365) Ex. 2 with Sutherland Decl. (Ex. 4 to ROA 307) Ex. B); and (iii) an unexplained \$280 increase in "account management and reconciliation" charges (compare Supp. Carraher Decl. (ROA 365) Ex. 2 with Sutherland Decl. (Ex. 4 to ROA 307) Ex. B). Plaintiffs are ordered to submit <u>by September 24, 2026</u> a revised proposed order and judgment (including the above amounts) with all exhibits attached (settlement agreement; amendment thereto; and notice letter (in English and Spanish)). The notice letter should be revised to state the above amounts. In addition, only one copy of the English-language version of the notice letter should be attached to the proposed order and judgment as an exhibit. The proposed order and judgment (ROA 369) submitted with the supplemental papers has two English-language copies of the notice letter attached as exhibits. The final accounting hearing is scheduled for <u>June 10, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the status of defendants' settlement payments, the actual amounts

		paid to the aggrieved employees, and the other amounts distributed under the settlement, including any uncashed checks. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
11	Singh v. Dr. Smoothie Enterprises, LLC 2025-01495408	Off calendar.
12	People of State of California v. Jivalagian 2026-01543442	<u>Plaintiff People of the State of California’s Renewed Motion to Stay Civil Action Pending Resolution of Criminal Investigations and Actions</u> Plaintiff People of the State of California (People) move to stay this case for one year. The court denied the People’s virtually identical motion five months ago. 4/16/26 Order (ROA 59); <i>see also</i> 2/11/26 Order (ROA 29). The court assumes the parties’ familiarity with the April 16, 2026 order, and incorporates that order herein by this reference. For the following reasons, the People’s renewed motion to stay is denied. “A party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” Civ. Proc. Code § 1008(b). Despite reproducing entire sections of the prior brief and declaration verbatim, the People do not acknowledge the prior motion or the court’s April 16, 2026 order, and have made no effort to comply with section 1008(b). Thus, as the instant motion again seeks an order staying this action, but the declaration filed with the motion does not state “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown,” the motion is denied. That the People now seek an order staying the action for one year, and previously sought an order staying the action for an unspecified time period, does not render section 1008(b) inapplicable, as the order the People seek—an order staying the action—is the same. Even if section 1008(b) does not apply, however, the motion is still denied. The motion and its accompanying declaration have not remedied the deficiencies in the People’s showing identified in the court’s April 16, 2026 order. Neither the brief nor the Herzog Declaration addresses all of the issues identified in the order, and, as with the prior George Declaration, the portions of the Herzog declaration on which the People rely are nonspecific and conclusory (e.g., Herzog Decl. (ROA 69) ¶ 12). As to the <i>Keating</i> factor addressing case management and efficient use of judicial resources (which, of course, is only one of several factors considered in the

		stay analysis), setting forth a general list of discovery devices (Herzog Decl. (ROA 69) ¶¶ 13-14) is not a substitute for a specific factual showing that discovery in this action would duplicate discovery potentially at issue in a potential criminal case against defendants. See 4/16/26 Order at 4. The People are ordered to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed September 10, 2026 (ROA 90), and based thereon continues the September 17, 2026 status conference to <u>January 21, 2027 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. The joint status conference statement need only apprise the court of material developments in the ensuing period. Clerk to give notice.
13	Varela v. American Addiction Centers, Inc. 2023-01366667	<u>Plaintiff Steve Varela's Motion for Leave to File First Amended Complaint</u> Plaintiff Steve Varela moves for leave to file a first amended complaint to add a PAGA claim and a cause of action for violation of Labor Code section 246. Seventy-nine days after filing his motion, plaintiff filed a "supplemental" brief in which he seeks leave to amend his complaint to add a second plaintiff. For the following reasons, plaintiff's motion for leave to file a first amended complaint to add a PAGA claim and a cause of action for violation of section 246 is granted, and plaintiff's "supplemental" request for leave to amend his complaint to add a second plaintiff is denied. Civil Procedure Code section 473 permits the trial court in its discretion to allow amendments to pleadings in the furtherance of justice. <i>Hulsey v. Koehler</i> (1990) 218 Cal.App.3d 1150, 1159. Ordinarily, courts should exercise liberality in permitting amendments at any stage of the proceeding. <i>Id.</i> California Rule of Court 3.1324 states, in relevant part: (a) Contents of motion A motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

		(b) Supporting declaration A separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier. Cal. R. Ct. 3.1324. Plaintiff's motion for leave to amend the complaint to add a PAGA cause of action and a cause of action for violation of section 246 complies with Rule 3.1324. ROA 182, 187. Defendant did not file an opposition and thus has not identified any reasons the motion should not be granted or any prejudice from permitting this amendment at this juncture. As to plaintiff's "supplemental" brief, which is actually a second motion for leave to amend, plaintiff did not comply with Rule 3.1324. Plaintiff has not "[s]tate[d] what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located," and plaintiff's counsel does not state in her "supplemental" declaration when the facts giving rise to the amended allegations were discovered or the reasons why the request for amendment was not made earlier. Cal. R. Ct. 3.1324(a)(3), (b)(3), (b)(4). In addition, the redlined copy of the proposed amended complaint attached to the Supplemental Faccin Declaration (ROA 202, Ex. 1) does not mention proposed new plaintiff Sergio Santana at all, and the clean copy of the proposed amended complaint attached to the Supplemental Faccin Declaration (ROA 202, Ex. 2) adds Santana's name in the case caption but does not appear to mention him anywhere in the pleading. Accordingly, plaintiff's motion for leave to file an amended complaint naming Sergio Santana as a plaintiff is denied. Plaintiff to give notice and to file and serve by September 24, 2026 a copy of the first amended complaint attached as Exhibit 2 to the June 3, 2026 Faccin Declaration (ROA 187).
14	Varela v. American Addiction Centers, Inc. 2023-01366691	Off calendar.